

Present

Mr. Justice Sheikh Abdul Awal

Criminal Appeal No. 5937 of 2015

Md. Samsuddin

.....Convict-appellant.

-Versus-

The State.

.....Respondent.

No one appears

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.... For the respondent.

Judgment on 03.07.2024.

Sheikh Abdul Awal, J:

This criminal appeal at the instance of convict appellant, Md. Samsuddin is directed against the impugned judgment and order of conviction and sentence dated 02.08.2015 passed by the learned Additional Metropolitan Sessions Judge, Rajshahi in Metropolitan Sessions Case No. 700 of 2013 arising out of MGR case No. 210 of 2007 corresponding to Boyalia Police Station Case No. 16 dated 10.03.2007 convicting the accused-appellant under table 3(Ka) of section 19(1) of the Madok Drabya Neyontran Ain, 1990 and sentencing him thereunder to suffer rigorous imprisonment for a period of 3(three) years and to pay a fine

of Tk. 5,000/- (five thousand) in default to suffer rigorous imprisonment for 6 (six) months more.

The prosecution case, in brief, is that one, S.I. Md. Zahidur Rahman as informant on 10.03.2007 at about 21.30 hours lodged an Ejahar with Boyalia Police Station, Rajshahi against the accused appellant stating, inter-alia, that on 10.03.2007 at about 19.45 as per secret information. the informant and other police forces rushed to S.A. Paribahan parcel service at Kumar Para under Boyalia Police Station and found a man sitting there with a carton and then the informant on suspicion arrested him and on interrogation he disclosed that he kept patali gur (পাটালী গুড়) in the carton and the same will send to Dhaka and thereafter, informant party out of suspicion opened that carton in presence of witnesses and found liquid phensedyls kept inside the patali gur (পাটালী গুড়) by special method, which valued at Tk. 6,500/-(six thousand and five hundred). Thereafter, informant party seized those phensedyls by preparing seizure list in presence of witnesses.

Upon the aforesaid First Information Report, Boyalia Police Station Case No. 16 dated 10.03.2007 under table 3(Ka) of section 19(1) of the Madok Drabya Neyontran Ain, 1990 was started against the accused appellant.

Police after completion of usual investigation submitted charge sheet against the accused appellant, vide

charge sheet No. 164 dated 30.04.2007 under table 3(Ka) of section 19(1) of the Madok Drabya Neyontran Ain, 1990 against the accused appellant.

Ultimately, the accused, Md. Samsuddin was put on trial in the court of the learned Additional Metropolitan Sessions Judge, Rajshahi to answer a charge under table 3(Ka) of section 19(1) of the Madok Drabya Neyontran Ain, 1990 to which the accused appellant pleaded not guilty and claimed to be tried stating that he has been falsely implicated in the case.

At the trial, the prosecution examined in all 5 (five) witnesses to prove its case while the defence examined none. The defence case, from the trend of cross-examination of the prosecution witnesses and examination of the accused under section 342 of the Code of Criminal Procedure appeared to be that the accused was innocent and he has been falsely implicated in the case

On conclusion of trial, the learned Additional Metropolitan Sessions Judge, Rajshahi by the impugned judgment and order dated 02.08.2015 found the accused appellant guilty under table 3(Ka) of section 19(1) of the Madok Drabya Neyontran Ain, 1990 and sentenced him thereunder to suffer rigorous imprisonment for a period of 3(three) years and to pay a fine of Tk. 5,000/- (five

thousand) in default to suffer rigorous imprisonment for 6 (six) months more.

Aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 02.08.2015, the accused-appellant preferred this criminal appeal.

No one appears for the convict appellant to press the appeal on repeated calls despite of fact that this matter has been appearing in the list for hearing with the name of the learned Advocate for the appellant days together.

In view of the fact that this petty old criminal Appeal arising out of 3(three) years sentence has been dragging before this Court for more than 8 years, I am inclined to dispose of the same on merit.

On scrutiny of the record, it appears that the prosecution to prove its case examined in all 5 witnesses out of whom PW-1, S.I. Md. Zahidur Rahman as informant of the case stated in his deposition that on 10.03.2007 on the basis of a secret information the informant and other police forces went to S.A. Paribahan parcel service at Kumar Para under Boyalia Police Station and found a man sitting there with a carton when he and other police forces on suspicion arrested him and on interrogation, he disclosed that he kept patali gur (পাটালী গুড়) in the carton and the same will send to Dhaka and thereafter, police team out of suspicion opened that carton in presence of witnesses and found 3 Litters of

liquid phensedyl kept inside the pataligur (পাটালী গুড়) by special method, which valued at Tk. 6,500/-(six thousand and five hundred). Thereafter, he seized those phensedyls by preparing seizure list in presence of witnesses. PW-2, Mahbubur Rahman, Manager of the S.A Paribahan, Rajshahi, stated in his deposition that” আমার সামনে কার্টুন নিয়ে আসে বুকিং করার জন্য তখন আমরা চেক করি। চেক করিয়া দেখি পাটালী গুড় তাজা তাজা। একটি পাটালি গুড় ভাঙ্গিয়া দেখি ১২ টি প্যাকেটে ছিল ০১টি প্যাকেটে ০৩ লিটার ফেসিডিল পাওয়া যায়। তারপর আমি বোয়ালিয়া থানায় জানাইলে পুলিশ আসিয়া আসামী সামছুদ্দিনকে গ্রেফতার করিয়া জব্দতালিকা পুলিশ প্রস্তুত করেন।” PW-3, Monjur Rahman, Police Inspector, simply stated in his deposition that he recorded the case and proved the FIR as exhibit-3 and his signature thereon as exhibit 3/1. PW-4, Md. Hafizur Rahman, Constable, stated in his deposition that on 13.03.2007 he went to S.A. Paribahan with A.S.I. Akbar Ali and saw a carton and opened it and found liquid phensedyl kept in polythen bag inside patali gur (পাটালী গুড়) and then A.S.I. Akbar seized those phensedyls and thereafter S.I. Touhiduzzaman lodged the Ejahar. PW-5, Md. Nazrul Islam, employee of S.A. Paribahan, stated in his deposition that on 10.3.2007 at 7.45 p.m. police asked him to put his signature on the seizure list and accordingly put his signature on the seizure list and proved the same as exhibit-2/3. This witness also stated in his deposition that “এস, এ পরিবহনের কুমার পাড়ার

সামনে একটা কার্টুনের মধ্যে গুড়ের মধ্যে পলিথিনে ৩২ বোতল ফেন্সিডিল ও তরল ০৩ লিটার ফেন্সিডিল উদ্ধার করে পুলিশ আমার স্বাক্ষর নেয়।” This witness stated in his cross-examination stated that “আমি ম্যানেজার এর কথামত স্বাক্ষর করেছিলাম। আমি কোন মালামাল দেখিনি। আমাদের অফিসের সামনে বোয়ালিয়া থানা। যে কাগজে আমার স্বাক্ষর নেওয়া হয়েছিল তা আমি পড়িনি, আমাকে পড়ে শোনানো হয়নি। সত্য নয় কার্টুনে আসামীর কোন মালামাল পাওয়া যায়নি। ম্যানেজার এর সাথে আসামীর কথা কাটাকাটি হয়েছিল টাকা পয়সা নিয়ে সত্য। এই কথা কাটাকাটির জন্য এস,এ পরিবহনের ম্যানেজার পুলিশ ডেকে ধরিয়ে দিয়েছে সত্য। এসব কথা আমি দারোগার কাছে বলেছিলাম।”

On scrutiny of the above quoted evidence, it appears that PW-1, S.I. Md. Zahidur Rahman stated in his deposition that he recovered liquid phensedyl kept in the carton with patali gur (পাটালী গুড়). PW.2, Mahbubur Rahman, manager of the S.A. Paribahan stated in his deposition that at the time of booking the carton out of suspicion he opened it and found liquid phensedyl kept with patali gur (পাটালী গুড়) and thereafter, he informed it to the local police station and then, police came and arrested the accused and seized those goods. PW-3, Monjur Rahman, Police Inspector, simply stated that he recorded the case. This witness stated nothing as to recovery of phensedyl from the possession of the accused appellant. PW-4, Md. Hafizur Rahman, constable, stated in his deposition that S.I. Touhiduzzaman lodged the FIR although it appears from the record that in this case S.I. Md. Zahidur Rahman, lodged the FIR. PW-5, Md. Nazrul Islam, employee of S.A. Paribahan,

stated nothing as to recovery of phensedyls from the possession of the accused appellant. This witness stated that 32 bottles phensedyl and 3 liters liquid phensedyl found in a carton at S.A. Paribahan office. This witness stated in his cross-examination that there was an altercation in between manager and the accused and he also told the same to police. This witness also stated that he did not put his signature on the seized goods and he put his signature on seizure list as per direction of manager. This witness also stated in cross-examination that “আমি কোন মালামাল দেখিনি” Moreover, in this case the prosecution having failed to examine a number of charge sheeted witnesses, specially some of the important including the investigating officer of the case without any reasonable explanation, which calls for a presumption under section 114(g) of the Evidence Act to the effect that had they been examined in this case they would not have supported the prosecution case and the benefit of this defect will go to the accused appellants. Further, PW-1, PW-2, PW-3, and PW-4 all of them stated in their evidence that police found liquid phensedyl kept in bags inside the patali gur (পাটালী গুড়) but PW-5 stated that 32 bottles phensedyl and 3 liters liquid phensedyl found in a carton at S.A. Paribahan office. This contradiction in the prosecution witnesses on material points also creates doubt as to recovery of seized phensedyls. PW-2 and PW-5 as staffs of the S.A. Paribahan Office, stated in their respective

evidence that there was no name written over the carton which also creates doubt as to actual owner of that carton.

As discussed above, there are so many limps and gaps as well as doubts about the existence of the facts as well as circumstance. In that light, it creates a doubt in the case of the prosecution about the accused being involved in the alleged crime. It is trite law that if any benefit of doubt arises, then the benefit should be given to accused. In that view of the matter, the trial Court ought to have acquitted the accused by giving the benefit of doubt. In that light, the judgment of the trial Court is to be interfered with.

In the result, the appeal is allowed. The impugned judgment and order of conviction and sentence dated 02.08.2015 passed by the learned Additional Metropolitan Sessions Judge, Rajshahi in Metropolitan Sessions Case No. 700 of 2013 arising out of MGR case No. 210 of 2007 corresponding to Boyalia Police Station Case No. 16 dated 10.03.2007 against the accused appellant is set-aside and accused appellant, Md. Samsuddin is acquitted of the charge levelled against him.

Convict appellant, Md. Samsuddin is discharged from his bail bond.

Send down the lower Court records at once.